

09/08/2026

Michael Wriston



RE: ICE FOIA Request 2026-ICF0-31191

Dear Requester:

This letter acknowledges receipt of your Freedom of Information Act (FOIA) request to U.S. Immigration and Customs Enforcement (ICE), dated 6/22/2026, in which you requested: records pertaining to National Environmental Policy Act review records prepared, received, completed, or dated on or after July 1, 2025, relating to specified ICE detention facilities or facility sites, including environmental review determinations, assessments, impact statements, notices, scoping materials, technical studies, and related correspondence with third-party environmental, engineering, or consulting firms. Our office received your request on 6/22/2026.

Your request for expedited treatment is hereby denied.

Under DHS FOIA regulations, expedited processing is appropriate only in limited circumstances. Expedited treatment may be granted when (1) the lack of expedited processing could reasonably be expected to pose an imminent threat to the life or physical safety of an individual, 6 C.F.R. § 5.5(e)(1)(i), or (2) there is an urgency to inform the public about an actual or alleged federal government activity, and the request is made by a person primarily engaged in disseminating information, 6 C.F.R. § 5.5(e)(1)(ii). Requesters seeking expedited processing must provide a detailed written statement explaining the basis for the request, and that statement must be certified as true and correct. 6 C.F.R. § 5.5(e)(3).

Your request for expedited processing is denied because it does not satisfy either category under 6 C.F.R. § 5.5(e)(1). You have not shown that the lack of expedited treatment will pose an imminent threat to the life or physical safety of any individual. Although you may be primarily engaged in disseminating information, you have not provided specific, detailed reasons demonstrating an urgency to inform the public about the subject of your request that exceeds the public's general interest in government activities. You also have not provided sufficient supporting evidence of a heightened public interest in this subject. Your request is largely conclusory and does not present facts that justify expedited processing under the applicable standards.

Due to the high volume of FOIA requests received by this office, we may experience some delay in processing your request. Under Section 5.5(a) of the Department of Homeland Security (DHS) FOIA regulations, 6 C.F.R. Part 5, ICE processes FOIA requests in the order in which they are received. Although ICE's goal is to respond within 20 business days of receiving a request, the FOIA permits a 10-business-day extension of this time period in certain circumstances. Because your request seeks numerous records and requires a thorough and wide-ranging search, ICE is invoking a 10-business-day extension for your request as allowed by 5 U.S.C. § 552(a)(6)(B).

If you are able to narrow the scope of your request (for example, by limiting the time frame, subject matter, or types of records), please contact this office. Narrowing the scope of your request may allow us to complete our search and respond more quickly. We will make every effort to process your request as promptly as possible.

In addition, ICE acknowledges that your FOIA request includes a request for fee waiver. We will adjudicate this request only if the agency is allowed to assess fees under the FOIA. See 6 C.F.R. § 5.11(c)-(d). If this is the case, you will be notified of our decision in a separate communication. If there are no assessable fees, your request for a fee waiver will be moot and you will not receive further communications from ICE regarding fees related to this FOIA request.

If you consider the decision to deny expedited treatment of your request to be an adverse determination, you may file an administrative appeal. To do so, you must submit your appeal, along with a copy of this letter, within 90 calendar days of the date of this letter, consistent with the procedures in the DHS FOIA regulations at 6 C.F.R. Part 5, § 5.8. You may submit your appeal through the SecureRelease Portal (preferred) or via regular mail to:

U.S. Immigration and Customs Enforcement
Office of the Principal Legal Advisor
U.S. Department of Homeland Security
500 12th Street, S.W., Mail Stop 5900
Washington, D.C. 20536-5900

Your envelope and letter should be marked "FOIA Appeal." Copies of the FOIA and DHS regulations are available at www.dhs.gov/foia.

We have tasked the appropriate ICE program offices with searching for records responsive to your request. If responsive records are located,

they will be reviewed to determine what can be released under the FOIA and any other applicable laws.

If you have any questions about this response, you may contact the ICE FOIA Public Liaison at ICEFOIAPublicLiaison@ice.dhs.gov or (202) 732-2159.

You also have the right to seek dispute resolution services from the Office of Government Information Services (OGIS). OGIS is a neutral office that helps resolve disputes between FOIA requesters and federal agencies as a non-exclusive alternative to litigation. Please note that if you are requesting access to your own records (a Privacy Act request), OGIS does not have authority to handle disputes arising under the Privacy Act of 1974. You may contact OGIS at:

Office of Government Information Services
National Archives and Records Administration
8601 Adelphi Road-OGIS
College Park, MD 207406001
Email: ogis@nara.gov
Telephone: 2027415770
Tollfree: 18776846448

Your request has been assigned reference number 2026-ICF0-31191. Please include this number in any future correspondence regarding your request.

Sincerely,

Freedom of Information Act (FOIA) Office
Office of Information Governance and Privacy
U.S. Immigration and Customs Enforcement (ICE)
ICE-FOIA@ice.dhs.gov | www.ice.gov/foia